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MOZAMBIQUE

Human Rights Developments

Mozambique prepared for presidential and parliamentary elections scheduled for December that were expected to be a litmus test of how sustainable the eight-year old peace was. In addition to being an election year there were a number of positive human rights developments although heavy-handed policing and appalling prison conditions continued to be a problem.

On August 31 President Chissano confirmed that polling would take place on December 3 and 4. Registration began on July 2 and ended on September 17 during which over 6.9 million (83 percent) of the estimated 8.3 million eligible electors signed up. Joaquim Chissano was presidential candidate of the ruling Front for the Liberation of Mozambique (FRELIMO). The Mozambique National Resistance (RENAMO) on August 2 entered into an alliance with ten parties not presently represented in parliament to form a single opposition list, the Electoral Union. Three other coalitions and ten other parties were to contest the elections.

Witnesses described some intimidation. On June 12 at a campaign rally RENAMO general secretary Jo(o Alexandre urged RENAMO supporters in the central district of Chibabva to give a beating to a local administrator, and at the same event a RENAMO parliamentary deputy, Rui de Sousa, beat up a FRELIMO supporter who was accused of ripping up RENAMO party leaflets. RENAMO also maintained an armed force of 150 men in Inhamitanga, Sofala province who prevented FRELIMO supporters from campaigning freely. RENAMO, in turn, complained that the police and FRELIMO cadres had intimidated its supporters in Xai Xai and in Tete.

As in previous years police behavior remained a serious concern and continued to be the source of the majority of complaints Human Rights Watch received. In January the Nampula public attorney's office started an investigation following allegations of summary executions carried out in the local cells of the Criminal Investigation Police (PIC) in Nampula. Unlike previous years there were more efforts outside Onlineuto to discipline abusive police officers. On May 31 a court in the northern province of Cabo Delgado found a local police commander in Chiure guilty of illegally detaining reporter Fernando Quinova in 1998 and was sentenced to six months imprisonment. Quinova had been held without charge for twenty-three days in a police cell but managed to escape and walked for two weeks through the bush until he reached the provincial capital, Pemba. He complained to the provincial police, but he was rearrested when he returned to Chiure on February 15 and charged with slandering the police and "leaking information." Neither charges existed under Mozambican law. In 1998, 322 police officers were dismissed for "ethical misconduct."

The criminal justice system remained overburdened. Public attorney's offices throughout the country handled 15,789 cases in 1998, a decline on the 1997 figure, but criminal charges prosecuted in 1998 had increased to 8,802 due to an increase in the total number of public attorneys and to their greater commitment and productivity. There remained severe delays in bringing suspects to trial, with many suspects not brought to a magistrate within the requisite forty-eight hours. During 1998 18,715 were deprived of their freedom-but only 4,923 of these were actually serving sentences passed by a court; 5,969 were detained on the orders of courts and were awaiting trial. This contributed to severe overcrowding in prisons. According to the attorney-general's March 1999 report "the only use of these

prisons is for learning and planning new crimes." The report stated that most cells contain two or three times the number of people for which they were built.

On December 10, 1998, during a ceremony marking the 50th anniversary of the Universal Declaration of Human Rights, President Chissano announced that his government was conducting an inquiry into prison conditions with a view to ascertaining the number of detainees who had been held beyond the legal limit for pretrial detention, the number of detainees without trial, and the number of illegal detentions.

In the same speech, President Chissano outlined his government's aim to strengthen state legal institutions, through providing better equipment and more staff and retraining members of the police force. The Minister of Education Arnaldo Nhavoto announced on the same day that from the year 2000 human rights would be introduced as a discipline in its own right into the national education system for pupils from first to seventh grades.

Landmines and child soldiers were widely used in Mozambique during the 1977-1992 civil war. In April an international conference on the use of children as soldiers occurred in Onlineuto and the Mozambican government offered to present the conference's final declaration to the 1999 Organization of African Unity (OAU) summit and to request the OAU secretariat to disseminate it to all foreign ministers. In May the first meeting of states parties to the 1997 Ottawa Mine Ban Treaty took place in Onlineuto hosted by Mozambique.

Defending Human Rights

The Mozambican Human Rights League (LDH) focused on poor prison conditions and campaigned for an enquiry into alleged extrajudicial executions by police in Nampula and other cases brought to its attention. The Association of Human Rights and Development (DHD) in December 1998 called for "concerted action" between the government and civil society to focus on checking the abuse of power in the prisons, bribery in public institutions, sexual abuses and forced marriages.

The Role of the International Community

On June 30 Mozambique became the fourth country to earn relief under the Heavily Indebted Poor Country (HIPC) debt initiative when the World Bank and International Monetary Fund (IMF) approved U.S.\$3.7 billion in relief from external creditors. The HIPC package provided some \$800 million more than had been agreed in April 1998. The savings would be used to increase health and education for Mozambicans, seven in ten of whom lived in poverty.

In May Switzerland signed a new U.S.\$1.1 million project agreement to assist a police upgrading project. Spain, Netherlands, and Germany had already contributed to a three year UN Development Program project aimed at reforming the police.

United States

President Chissano visited the U.S. in early December 1998 and saw senior administration officials including President Bill Clinton. During this visit Mozambique and the U.S. signed a Bilateral Investment Treaty. During 1999 the U.S. continued to be the largest bilateral donor in Mozambique and maintained one of USAID's largest programs in sub-Saharan Africa.

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